

## Smt. Rama Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 October 2019 · Writ-C No. 32911 of 2019 · **Writ disposed with liberty to seek instalments under clause 6.14; on deposit of Rs 75,000 the Executive Engineer is to consider restoration and fix instalments for the balance.**

### HEADNOTE

A consumer challenging a recovery citation for electricity arrears who is willing to pay the demand if given time and instalments, and who seeks restoration of supply, is to approach the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code. The High Court disposed of the writ without deciding the citation, with liberty to represent within two weeks; the Engineer is to consider and decide in accordance with law preferably within one month. Deposit of Rs 75,000 is to be considered for immediate restoration, with instalments for the remaining dues.

### FACTUAL SUMMARY

Smt. Rama Devi challenged a recovery citation dated 31 July 2019 demanding Rs 2,23,700 plus interest as electricity dues. After some argument she offered to pay the entire demand if given reasonable time and instalments, and if supply were restored in the meantime. The Division Bench heard her counsel and counsel for the Executive Engineer (respondent no. 4) and disposed of the writ on that offer, without examining the citation on merits.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.14

instalment facility for arrears and restoration of supply

#### HOLDING

A consumer facing recovery of electricity arrears who is willing to pay the demanded amount if given time and instalments, and who seeks restoration of supply in the meantime, may approach the Executive Engineer under clause 6.14 of the Supply Code. The writ court will not decide the recovery citation on merits; it will dispose of the petition with liberty to represent within a short time, the Engineer to consider and decide in accordance with law. On deposit of a part of the arrears (here Rs 75,000 of Rs 2,23,700), the Engineer shall consider immediate restoration and fix instalments for the balance. ¶ [unnumbered](#)

**FLAG** Court cited clause 6.14 of the U.P. Electricity Supply Code, 2015; the instalment clause is 6.14 of the 2005 Code.

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — VALIDITY AND QUANTUM OF THE RECOVERY CITATION

The Court did not examine whether Rs 2,23,700 plus interest was due; it disposed of the writ on the petitioner's offer to pay in instalments under clause 6.14.